

*Supreme Court of the State of New York
County of Queens*

Index No.:

Date filed:

FRANK MESTECKY,

Plaintiff(s) designate(s)

Plaintiff,

QUEENS County as the place
of trial.

-against-

The basis of the venue is:
Where action accrued

THE CITY OF NEW YORK and POLICE OFFICER
JOHN DOE,

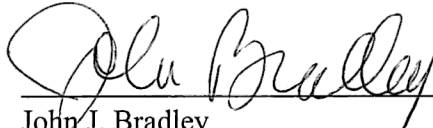
Defendants.

Summons

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Notice set forth below.

Dated: April 17, 2024


John J. Bradley
GUERCIO & GUERCIO, LLP
Attorneys for Plaintiff
77 Conklin Street
Farmingdale, NY 11735

Defendants' Addresses:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

POLICE OFFICER JOHN DOE (address unknown)

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X
FRANK MESTECKY,

Plaintiff,

-against-

Index No.:

**THE CITY OF NEW YORK and POLICE
OFFICER JOHN DOE,**

VERIFIED COMPLAINT

Defendants.

-----X

Plaintiff, FRANK MESTECKY, by his attorneys, GUERCIO & GUERCIO, LLP, complaining of Defendants, THE CITY OF NEW YORK (hereinafter "City") and POLICE OFFICER JOHN DOE, alleges as follows:

Parties

1. Plaintiff resides in the State of New York, County of Queens.
2. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK (hereinafter the "City"), was and still is a municipal corporation organized and duly existing under and pursuant to the laws of the State of New York.
3. At all times hereinafter mentioned, Defendant, City, maintained a Police Department, the employees of which act as its agents in the area of law enforcement.
4. At all times hereinafter mentioned, Police Officer John Doe was a police officer with the New York Police Department (hereinafter "NYPD") and acting within the scope of his employment as a police officer with the NYPD.
5. At all times hereinafter mentioned, Police Officer John Doe was acting under color of state law.

6. At all times hereinafter mentioned, Police Officer John Doe is sued individually and in his official capacity.

CONDITIONS PRECEDENT

7. On or about April 19, 2023, plaintiff filed a timely Notice of Claim.

8. More than sixty (30) days have elapsed since the service of the Notice of Claim and adjustment or payment thereof has been neglected or refused.

9. That this action is brought within one (1) year and ninety (90) days from the date that the claims accrued.

10. That this action falls within one or more of the exceptions of CPLR 1602, including, but not limited to CPLR 1602(11).

11. Venue is proper based upon where the action accrued.

12. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules Section 1602 with respect to joint and several liability.

FACTUAL BACKGROUND

13. On or about January 20, 2023, at approximately 7:08 p.m., plaintiff was lawfully present and residing at or near 40-15 203rd Street, Bayside, New York 11361, when he was unlawfully stopped, detained, and arrested by the police officers.

14. Police officers falsely accused plaintiff of having assaulted an individual.

15. Upon information and belief, prior to the underlying incident, this individual was known to the police department and known for making false complaints in the past.

16. Based upon information learned by police officers at the time of the incident and/or information learned about said individual prior to the underlying incident, the police officers knew

or should have known that said individual lacked credibility and veracity, requiring that the police officers engage in a further investigation of the incident before arresting plaintiff.

17. The police officers failed to conduct a further investigation of the incident despite knowledge that said individual lacked veracity and/or credibility. In fact, the police officers refused to review exculpatory evidence offered by plaintiff and his family that would have cleared him of the charges.

18. Upon information and belief, despite the officers' knowledge and belief that there was no probable cause to arrest plaintiff, the officers arrested Plaintiff and charged him with, among other charges, assault.

19. The police officers placed plaintiff in custody without his consent and without probable cause.

20. The police officers placed the handcuffs on plaintiff in an excessively tight manner, and despite plaintiff's requests to loosen the handcuffs, the police officers refused. As a direct and proximate cause of the police officers failure to grant plaintiff's requests to loosen the handcuffs, plaintiff suffered physical injuries.

21. That on January 20, 2023, the City, by and through its agents, servants and/or employees, including Police Officer John Doe, without probable cause initiated a criminal prosecution of plaintiff, charging plaintiff with crimes of which he was innocent and of which the City and John Doe knew plaintiff to be innocent.

22. That the actions of defendants herein were intentional and malicious in nature.

23. That the actions of defendants were extreme and outrageous, and that defendant intentionally caused severe emotional distress and mental trauma to plaintiff.

24. That by virtue of the foregoing, plaintiff sustained emotional injuries, endured and continues to endure pain and suffering and loss of enjoyment of life, suffered a deprivation of liberty, and was otherwise damaged.

FIRST CAUSE OF ACTION AGAINST THE CITY AND NYPD DEFENDANTS

(False Arrest/False Imprisonment Under NY State Law)

25. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

26. That the aforesaid actions of the officers constitute a false arrest and false imprisonment of plaintiff, for which the officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST THE CITY AND NYPD DEFENDANTS

(Assault and Battery Under NY State Law)

27. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

28. That the aforesaid actions of the officers constitute an assault and battery of plaintiff, for which the officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Malicious Prosecution Under NY State Law)

29. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

30. That the aforesaid actions of the officers constitute malicious prosecution of plaintiff, for which the officers are liable under New York law for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST POLICE OFFICER JOHN DOE

(42 U.S.C. § 1983: Fourth and Fourteenth Amendment Violations)

31. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

32. That the aforesaid actions by Police Officer John Doe in falsely arresting and imprisoning plaintiff, assaulting and battering plaintiff, and maliciously prosecuting plaintiff, constitute unreasonable and illegal seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST THE CITY

(Negligent Hiring, Training, Supervision and Retention)

33. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

34. That the aforesaid actions by the officers and the resulting injuries to plaintiff followed and were the result of the negligence of the City in its hiring, training, supervision, and retention of the officers.

SIXTH CAUSE OF ACTION AGAINST THE ALL DEFENDANTS

(Intentional Infliction of Emotional Distress)

35. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

36. That the aforesaid actions by the individual defendants constitute intentional infliction of emotional distress of plaintiff, for which the individual defendants are liable under

New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Negligence)

37. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

38. That the aforesaid actions by the defendants constitute negligence, for which the defendants are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

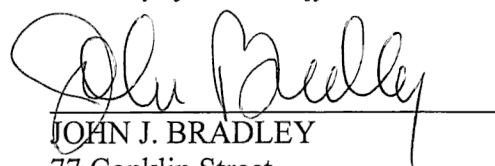
JURY DEMAND

39. Plaintiff demands a trial by jury on all causes of action.

WHEREFORE, plaintiff demands judgment against defendants on the foregoing causes of action in the form of compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against Police Officer John Doe in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorneys' fees against defendants Police Officer John Doe pursuant to 42 U.S.C. § 1988, and the costs and disbursements of this action.

Dated: Farmingdale, New York
April 17, 2024

Yours, etc.
GUERCIO & GUERCIO, LLP
Attorneys for Plaintiff


JOHN J. BRADLEY
77 Conklin Street
Farmingdale, NY 11735
(516) 694-3000

VERIFICATION

JOHN J. BRADLEY, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

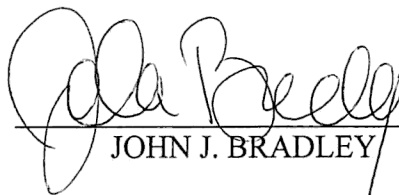
That I am the attorney for the plaintiff in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff is that plaintiff does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff's file maintained by your affirmant's office.

Dated: Farmingdale, New York
April 17, 2024



JOHN J. BRADLEY